

not seek to narrowly tailor the request, but rather seeks a sweeping order keeping his true name, trust information and other information about the subject vehicle secret.

Disposition

The Court finds and orders as follows:

1. The Motion to Seal is DENIED.
2. Plaintiff is ordered to file an amended complaint (the “Amended Complaint”) to state the party’s true name and to allege in the new pleading whatever information contained in the Documents to be Sealed Plaintiff wishes to allege in support of the stated claims.
3. Defendants shall have **thirty (30) days** after filing and service of the Amended Complaint to file a responsive pleading.
4. In light the foregoing, Plaintiff’s “Motion to Correct Clerical Misnomer in Request for Entry of Default” on May 18, 2026 (the “Motion to Correct”) is MOOT and the new hearing date recently set on that motion July 6, 2026 is VACATED. The related OSC is also DISCHARGED. The Motion to Stay and Quash Deposition Notices filed on May 28, 2026 remains set for hearing on July 6, 2026.

14. 9:00 AM CASE NUMBER: C26-00316
CASE NAME: G.D. VS. WALNUT CREEK LUXURY CARS, LLC
HEARING IN RE: APPLICATION FOR WRIT OF POSESSION
FILED BY:
TENTATIVE RULING:

Continued to **October 12, 2026**, 9:00 am, Department 34, by the Court’s Order issued June 11, 2026.

15. 9:00 AM CASE NUMBER: MSC20-00056
CASE NAME: GULINGAN VS SU
***HEARING ON MOTION IN RE: CONTINUED FROM 4/13/26**
FILED BY:
TENTATIVE RULING:

Defendants and Cross-Complainants Ying Zhong Su, Ziwen Yao and Rachel Xinqi Su (“Defendants”) filed a Motion to Tax Costs on November 25, 2025 (the “Motion to Tax Costs”) directed to the Memorandum of Costs filed by cross-defendant Salvacion Gulingan (“Gulingan”) on November 14, 2025. The Motion to Tax Costs was initially set for hearing on April 6, 2026. The Motion to Tax Costs was continued by the Court for hearing on April 13, 2026. At the hearing on April 13, 2026, the Court made certain orders regarding further meet and confer and the preparation of Joint Separate Statement as to any unresolved cost items in dispute. See Order entered May 6, 2026.

Background

A judgment was entered in this action on November 13, 2025 (the “Judgment”). The Judgment included a money judgment in favor of plaintiff and cross-defendant Gulingan as against all of the Defendants.

The Judgment determined that costs were to be awarded to plaintiff against Defendants upon post-trial request.

A Memorandum of Costs and supporting materials was filed referencing “Cross-Defendant Salvacion Gulingan” on November 14, 2025 (the “**Memo of Costs One**”). This Memo of Costs seeks a total of \$28,120.84 for various categories of specific costs. **It is Memo of Costs One that is at issue on this motion.**

A second Memorandum of Costs and supporting materials was filed referencing “SALVACION GULINGAN” on November 14, 2025 (the “**Memo of Costs Two**”). This Memo of Costs seeks a total of \$13,620.07 for various categories of specific costs. The Memo of Costs Two is not at issue in this motion.

The Motion to Tax Costs is supported by the Declaration of Lubna Jahangiri filed November 25, 2025 with the Motion to Tax Costs (the “Supporting Declaration”), followed by a supplemental Declaration filed December 1, 2025 (the “Supp. Supporting Declaration”).

Plaintiff filed an Opposition on December 4, 2025, along with the Declaration of Alberto Reyna (“Reyna Decl. re Costs”).

Defendants filed a Rely on April 6, 2026.

Pursuant to the Court’s Order, the parties filed their Joint Statement re Costs on May 22, 2026.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.

Cost Items 1a (\$130.50, \$101.70 and \$41.70). The Court DENIES the request to tax or strike these cost items. The Court rejects the argument that a party is not entitled to recover filing fees for an unsuccessful motion. While the Court concurs that it has the discretion to conclude that the costs of an unsuccessful motion should be denied, even an ultimately unsuccessful motion may be a reasonable litigation expense if brought as part of a reasonable effort by the prevailing party to pursue its interests in the case. See *Naser v. Lakeridge Athletic Club* (2014) 227 Cal. App. 4th 571, 576 (affirming allowance of award of jury fee as costs even though no jury trial took place). The Court finds that the items in question were incurred as part of reasonable efforts by the prevailing party to pursue its interests in the case and that these costs items were reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Items 1b (\$207.50, \$94.95, \$137.50, \$433.51 and 209.50). The Court DENIES the request to tax or strike these cost items. The Court DENIES the request to tax or strike these cost items for the same

reasons discussed above in connection with Cost Items 1a. The Court finds that the items in question were incurred as part of reasonable efforts by the prevailing party to pursue its interests in the case and that these costs items were reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 1c (\$95.70). The Court DENIES the request to tax or strike this cost item. The Court concludes that the modest sum incurred to facilitate the appearance of an expert witness at trial was eminently reasonable. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 2a (\$857.50). The Court DENIES the request to tax or strike this cost item. A court may award costs for depositions including video-taping fees relating to video-taping those depositions that were necessary for trial preparation. Defendant has not shown that the video-taping the subject deposition was unnecessary or unreasonable. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3a (\$186.00). The Court DENIES the request to tax or strike this cost item for the same reasons discussed above at to Cost Items 1b. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3b (\$387.22). The Court DENIES the request to tax or strike this cost item. If part of a reasonable effort by the prevailing party to pursue its interests in the case and prepare for trial, the cost to secure the attendance of a witness at trial is a reasonably necessary expense even if ultimately not necessary because another party calls the witness. See *Naser v. Lakeridge Athletic Club* (2014) 227 Cal. App. 4th 571, 576 (affirming allowance of award of jury fee as costs even though no jury trial took place). The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3c (\$656.79). The Court DENIES the request to tax or strike this cost item for the same reasons discussed above at to Cost Items 3b. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3d (\$857.45). The Court DENIES the request to tax or strike this cost item for the same reasons discussed above at to Cost Items 3b. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 4a (\$9,568.75). The Court DENIES the request to tax or strike this cost item. The moving parties contend that that expert fees are not properly recoverable under Code of Civil Procedure section 998. See Code Civ. Proc. § 998(c) ("In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant."). Gulingan contends that Mr. Westover's testimony was reasonably necessary, including to "to establish the location of the boundary line in relation to the location of the failed rock wall to establish that the Cross-Complainants' wall was encroaching on Cross-Defendant's property." See Opposition, p. 8. The Court is unpersuaded by the distinction the moving parties attempt to draw based on the cross-complaint having been dismissed mid-trial and the expert's testimony being used by Gulingan "as plaintiff." It is evident that the expert work and testimony was still necessary and material to the issues in contention. See Reyna Decl. re Costs, ¶14. The Court finds that the item in question was reasonably necessary to the conduct of the

litigation and reasonable in amount.

Disposition

The Court finds and orders as follows:

1. The Motion to Tax Costs is DENIED.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: MSC20-01624

CASE NAME: RAFAY VS FCA US, LLC

***HEARING ON MOTION IN RE:**

FILED BY:

TENTATIVE RULING:

This matter is further continued by the Court, *sua sponte*, to **June 29, 2026, 9:00 am, in Department 34.**

17. 9:00 AM CASE NUMBER: N25-1537

CASE NAME: RAMANUJAN LLC VS. KAWALDEEP SETHI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: BRIAN J. WAGNER, ESQ.**

FILED BY: RAMANUJAN LLC

TENTATIVE RULING:

Brian J. Wagner and Kutak Rock LLP (“Counsel”) filed a Motion to be Relieved as Counsel on January 30, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on June 15, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Ramanujan LLC (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed January 30, 2026, ¶12. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13 and Notice filed January 30, 2026.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.